

UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEBRA NELSON,
Plaintiff,

v.

Case No.: 3:25cv1447/MCR/ZCB

AMENTUM GOVERNMENT
SERVICES PARENT HOLDINGS
LLC, et al.,
Defendants.

_____ /

ORDER

Plaintiff is proceeding *pro se* in this employment discrimination action.¹ The Court struck Plaintiff's initial complaint (Doc. 1) as an impermissible shotgun pleading and ordered Plaintiff to file an amended complaint. (Doc. 4). Plaintiff has now filed an amended complaint. (Doc. 5). Upon a review of the amended complaint, the Court concludes that it is deficient for exceeding the page limit allowed by the Local Rules and for bearing elements of shotgun pleadings. Accordingly, the Court will require Plaintiff to file a second amended complaint to correct these issues.

¹ Plaintiff paid the \$405.00 filing fee. (Doc. 2).

I. Discussion

A. Plaintiff's amended complaint exceeds the 25-page limit set by the Local Rules.

The Local Rules for the Northern District of Florida require *pro se* civil rights complaints—such as cases under Title VII of the Civil Rights Act of 1964—to be filed “only on a form available without charge from the Clerk or on the District’s website[.]” N.D. Fla. Loc. R. 5.7(A). “The Court need not—and ordinarily will not—consider a . . . complaint that is not filed on the proper form.” *Id.* The complaint form “must set out specific claims and supporting facts and may not make reference to a memorandum.” N.D. Fla. Loc. R. 5.7(B). And such “complaint[s], together with any memorandum, must not exceed 25 pages, unless the Court authorizes it.” *Id.*

Here, Plaintiff used the employment discrimination complaint form as required by the Local Rules and the Court’s prior order (Doc. 5 at 1-2). N.D. Fla. Loc. R. 5.7(A). But when attachments and exhibits are included, Plaintiff’s amended complaint is 29 pages long. (Doc. 5 at 1-7; Docs. 5-1 to 5-3). The Court has not authorized Plaintiff to exceed the 25-page limit for employment discrimination cases under Title VII, *see* N.D. Fla. Loc. R. 5.7(A)-(B), and Plaintiff was specifically advised of this page

limit in the Court’s prior order. (Doc. 4 at 12 n.6). Because Plaintiff’s amended complaint violates the page limit set by the Local Rules, Plaintiff will be required to file a second amended complaint.² Plaintiff is advised that she must adhere to the 25-page limit set by the Local Rules, or she may face dismissal of this action. *See McNair v. Johnson*, 143 F.4th 1301, 1308 (11th Cir. 2025) (“Dismissal without prejudice was an appropriate exercise of the district court’s inherent authority to manage its docket and enforce the local rules.”).

B. Plaintiff’s amended complaint bears elements of shotgun pleadings.

Rule 8(a)(2) of the Federal Rules of Civil Procedure requires a complaint to contain “a short and plain statement of the claim” showing that the plaintiff is entitled to relief. Fed. R. Civ. P. 8(a)(2). And Rule 10(b) requires a plaintiff to “state its claims [] in numbered paragraphs,

² The Court notes that Plaintiff essentially filed multiple amended complaints at the same time. (*See* Doc. 5; Doc. 5-2). Any identical factual allegations do not need to be alleged more than once. And by using the Court-approved employment discrimination complaint form, Plaintiff can invoke the Court’s jurisdiction and set out her claims (Doc. 5 at 4-6) without the need to redundantly do so in what is effectively a separate complaint. (Doc. 5-2). Plaintiff may attach pages to the employment discrimination form as needed for additional spacing (similar to Doc. 5-3), but Plaintiff should avoid filing a wholly separate amended complaint alongside the employment discrimination form (*see* Doc. 5-2).

each limited as far as practicable to a single set of circumstances.” Fed. R. Civ. P. 10(b). “A shotgun pleading is a complaint that violates either Federal Rule of Civil Procedure 8(a)(2) or Rule 10(b), or both.” *Barmapov v. Amuial*, 986 F.3d 1321, 1324 (11th Cir. 2021). Shotgun pleadings are “flatly forbidden.” *Id.* And district courts have the “authority to dismiss a shotgun pleading on that basis alone.”³ *Jackson v. Bank of Am., N.A.*, 898 F.3d 1348, 1357 (11th Cir. 2018).

The Eleventh Circuit has explained that there are four types of shotgun pleadings: (1) “a complaint containing multiple counts where each count adopts the allegations of all preceding counts, causing each successive count to carry all that came before and the last count to be a combination of the entire complaint”; (2) “a complaint that is replete with conclusory, vague, and immaterial facts not obviously connected to any

³ The Court is permitted to review Plaintiff’s amended complaint to determine if it is a shotgun pleading, regardless of Plaintiff’s payment of the filing fee. *See Vibe Micro, Inc. v. Shabanets*, 878 F.3d 1291, 1295 (11th Cir. 2018) (“A district court has the inherent authority to control its docket and ensure the prompt resolution of lawsuits, which includes the ability to dismiss a complaint on shotgun pleading grounds.”) (cleaned up); *Simon v. Pierre*, No. 24-CV-24469, 2025 WL 269188, at *2 (S.D. Fla. Jan. 7, 2025) (“Thus, even if a plaintiff is not seeking *in forma pauperis* status, the Court still has the authority to *sua sponte* dismiss a shotgun pleading complaint.”), *adopted*, 2025 WL 263457 (S.D. Fla. Jan. 22, 2025).

particular cause of action”; (3) “a complaint that does not separate each cause of action or claim for relief into a different count”; and (4) “a complaint that asserts multiple claims against multiple defendants without specifying which of the defendants are responsible for which acts or omissions, or which of the defendants the claim is brought against.” *Barmapov*, 986 F.3d at 1324-25 (cleaned up). What all four types of shotgun pleadings have in common is “that they fail to one degree or another, and in one way or another, to give the defendants adequate notice of the claims against them and the grounds upon which each claim rests.” *Weiland v. Palm Beach Cnty. Sheriff’s Off.*, 792 F.3d 1313, 1323 (11th Cir. 2015). And dismissing shotgun pleadings (or requiring a more definite statement) is necessary because “district courts have neither the manpower nor the time to sift through a morass of irrelevant facts in order to piece together” a plaintiff’s claims. *Barmapov*, 986 F.3d at 1327-28 (Tjoflat, J., concurring).

Plaintiff’s amended complaint bears elements of at least two of the categories of shotgun pleadings. First, Plaintiff “asserts multiple claims against multiple defendants without specifying which of the defendants are responsible for which acts or omissions, or which of the defendants

the claim is brought against.” *Barmapov*, 986 F.3d at 1325 (cleaned up). In the Statement of Claims section of the employment discrimination form, Plaintiff refers to an “attached Statement of Facts and Statement of Claims, incorporated herein.” (Doc. 5 at 5). But because Plaintiff has simultaneously filed the referenced attachment (Doc. 5-3) alongside what appears to be a wholly separate complaint (Doc. 5-2), it is unclear exactly which claims are being asserted against which Defendants or the precise bases for these claims.

The “Amended Complaint and Demand for Jury Trial” (Doc. 5-2) section of Plaintiff’s amended complaint includes eight separate counts. But the “Attachment to Pro Se Form Statement of Facts and Claims” (Doc. 5-3) section includes only seven counts. And the Defendant(s) referenced in several of these counts are not identical.

Count I of the amended complaint section is a Title VII gender discrimination count where Plaintiff references allegations against Defendant Abdul-Jami. (Doc. 5-2 at 3). But in the same count, Plaintiff states that “Defendants’ treatment of Plaintiff was disparate based on her gender” without specifying which Defendant(s) are responsible for such allegations. Count I of the attachment section similarly raises Title

VII gender discrimination based on allegations against Defendant Abdul-Jami. (Doc. 5-3 at 2). But Plaintiff again references “Defendants” collectively without specifying which Defendant(s) committed which acts complained of. (*Id.*).

Count II of the amended complaint section is a Title VII retaliation claim where Plaintiff references Defendant Thomas and Defendant Hughes specifically without mentioning all Defendants collectively. (Doc. 5-2 at 3-4). Count II of the attachment section is also a Title VII retaliation claim referencing Defendant Thomas and Defendant Hughes. (Doc. 5-3 at 2). There, however, Plaintiff alleges that “Defendants retaliated against Plaintiff” without clarifying if this means all Defendants or only Defendants Thomas and Hughes. (*Id.*).

Count III of the amended complaint section is a Title VII hostile work environment claim where Plaintiff references Defendant Velasquez. (Doc. 5-2 at 4). Again though, Plaintiff goes on to collectively reference “Defendants tolerat[ing]” allegedly unlawful conduct without specifying which Defendants committed which acts. (*Id.*). Count III of the attachment section similarly references both Defendant Velasquez

individually and Defendants collectively without specification as to who the claim is actually being brought against. (Doc. 5-3 at 2).

Count IV of the amended complaint section is a claim under the Florida Whistleblower Act wherein Plaintiff only references Defendants collectively. (Doc. 5-2 at 4). Count IV of the attachment section also references Defendants collectively but references a letter from Defendant Hughes. (Doc. 5-3 at 2). Count V of the amended complaint section is a state law defamation claim where Plaintiff references statements made by Defendant Valasquez and Defendant Thomas. (Doc. 5-2 at 4). Count V of the attachment section, however, states that “Defendants, including Velasquez and Thomas, published false statements” about Plaintiff without clarifying who the claim is brought against or how any other “Defendants” are responsible. (Doc. 5-3 at 2).

Plaintiff brings a state law civil conspiracy claim in Count VII of the amended complaint section.⁴ (Doc. 5-2 at 4). The same claim is asserted in Count VII of the attachment section. (Doc. 5-3 at 3). But in both counts, Plaintiff merely states that “Defendants acted in concert” or

⁴ Count VI in both the amended complaint section and attachment section appear to be identical claims against Defendant Amentum for negligent supervision of employees. (Doc. 5-2 at 4; Doc. 5-3 at 2-3).

“Defendants collectively acted” without specifying allegations against each Defendant. (Doc. 5-2 at 4; Doc. 5-3 at 3).

Count VIII is a state law intentional infliction of emotion distress claim that only appears in the amended complaint section; it does not appear at all in the attachment section. (Doc. 5-2 at 4). But in Count VIII, Plaintiff states that “Defendants, including Thomas, Hughes, Valasquez, and Abdul-Jami” engaged in unlawful conduct. (*Id.*). As with her other counts though, Plaintiff fails to specify the actions of each named Defendant and fails to clarify whether this claim is asserted against only those Defendants or all Defendants. (*Id.*).

Plaintiff’s strategy of grouping together all Defendants—or some combination of them—without specifying the actions of each Defendant is insufficient because Plaintiff fails to specify “which of the defendants are responsible for which acts or omissions, or which of the defendants the claim is brought against.” *Barmapov*, 986 F.3d at 1325 (cleaned up). This “all-claims-against-all-Defendants” pleading strategy—without specifying which Defendant(s) each count is brought against does not suffice. *See Magluta v. Samples*, 256 F.3d 1282, 1284 (11th Cir. 2001) (finding a shotgun pleading where plaintiff’s complaint “names fourteen

defendants[,] . . . all defendants are charged in each count[,]” and the “complaint is replete with allegations that ‘the defendants’ engaged in certain conduct making no distinction among the fourteen defendants charged, though geographic and temporal realities make plain that all of the defendants could not have participated in every act complained of”); *see also Schmidt v. Disney Parks, Experiences & Prods., Inc.*, 721 F. Supp. 3d 1314, 1323 (M.D. Fla. 2024) (“[N]othing in the pleading rules prohibits lodging the same claim against multiple defendants if they are all alleged to have participated in the same acts rising to the claim. However, unless it is possible that all defendants could have engaged in the same conduct, a complaint that lumps together the defendants will be found to be a shotgun pleading.”) (cleaned up and citation omitted), *aff’d*, 2025 WL 1826050 (11th Cir. July 2, 2025); *Swanson v. Cobb Cnty. Dep’t of Fam. & Child. Servs.*, No. 1:21-CV-04978-JPB, 2023 WL 2169044, at *4 (N.D. Ga. Feb. 21, 2023) (“Plaintiff is permitted to assert a single count against multiple defendants; however, Plaintiff *must identify what precise conduct is attributable to each individual defendant separately in each count.*”) (emphasis added).

Second, the amended complaint contains “multiple counts where each count adopts the allegations of all preceding counts, causing each successive count to carry all that came before and the last count to be a combination of the entire complaint.” *Barmapov*, 986 F.3d at 1324-25. As previously noted, it is unclear whether Plaintiff is asserting seven or eight different claims given the discrepancy between different parts of her filing. (Doc. 5-2 at 3-4; Doc. 5-3 at 2-3). Although none of Plaintiff’s counts explicitly adopt the allegations of all preceding counts, each count fails to incorporate *any* factual allegations by reference or specify the material allegations for each count. (*Id.*). And in each count, Plaintiff provides only conclusory allegations against all Defendants collectively or various groups of Defendants without specifying the acts or omissions of each Defendant to support the respective count. (*Id.*). Thus, Plaintiff is essentially relying on the same general factual allegations for each count despite including only vague and conclusory allegations to connect those general allegations to each of her counts. (*Id.*).

It is insufficient for Plaintiff, expressly or impliedly, to simply incorporate all general factual allegations in each of her counts while failing to explain how specific facts within those allegations support each

count.⁵ *See Joseph v. Bernstein*, 612 F. App'x 551, 555 (11th Cir. 2015) (“The amended complaint, rather than addressing this deficiency, instead failed to incorporate any specific factual allegations in his claims. Thus, the claims presumably all refer to the same general factual allegations, with no clear connection thereto or application thereof. This makes it virtually impossible to know which allegations of fact are intended to support which claim(s) for relief.”) (cleaned up); *see also Chudasama v. Mazda Motor Corp.*, 123 F.3d 1353, 1359 n.9 (11th Cir. 1997) (finding a shotgun pleading where “[e]ach count has two numbered paragraphs” and incorporates all general factual allegations, many of which “appear

⁵ *See Dunn v. Shoppes at Edgewater, LLC*, No. 5:19cv76-RH-MJF, 2019 WL 5799730, at *1 (N.D. Fla. Oct. 28, 2019) (“The plaintiffs apparently believed they could cure this by eliminating all incorporations by reference—by not specifying which of the general allegations were incorporated into which count. That of course does not ordinarily cure the problem; the technique still leaves the defendants and the court guessing.”); *Hand v. ABN AMRO Mortg. Grp., Inc.*, No. CV 112-176, 2013 WL 6383128, at *3 (S.D. Ga. Dec. 5, 2013) (“The underlying problem is that the shotgun complaint fails to link adequately a cause of action to its factual predicates.”) (cleaned up); *Sykora v. United States Postal Serv.*, No. 3:18-CV-1280-J-32JBT, 2020 WL 4339350, at *3 n.4 (M.D. Fla. July 28, 2020) (“While [the plaintiff] labels his allegations as five distinct causes of action, his allegations are still impermissibly conclusory, but overlapping and vague. He provides only ten paragraphs of general allegations, but does not incorporate these allegations into the causes of action, and repeats many of the same facts in separate causes of action. The facts upon which each claim rests remain muddled.”) (cleaned up).

to relate to only one or two counts or to none of the counts at all[,]” leaving a reader of the complaint to “speculate as to which factual allegations pertain to which count”); *Johnson Enters. of Jacksonville, Inc. v. FPL Grp., Inc.*, 162 F.3d 1290, 1332 (11th Cir. 1998) (noting a “complaint that began with thirty-seven paragraphs of general allegations that were incorporated by reference into each count” and stating that “[t]hese general allegations operated as camouflage, obscuring the material allegations of [the plaintiff’s] claims and necessarily implying that all the allegations were material to each claim”).⁶

For these reasons, Plaintiff’s amended complaint bears elements of shotgun pleadings. It fails “to give the defendants adequate notice of the claims against them and the grounds upon which each claim rests.” *Vibe Micro, Inc. v. Shabanets*, 878 F.3d 1291, 1295 (11th Cir. 2018). The Court

⁶ Plaintiff’s various attachments are referenced in the amended complaint section’s statement of facts (Doc. 5-2 at 2-3) but not in the statement of facts for the attachment section (Doc. 5-3 at 1-2). But by not referencing the relevant exhibits within each count and explaining how such exhibits support each claim, Plaintiff forces Defendants (and the Court) to guess as to which allegations and exhibits are material to each claim. *Dunn*, 2019 WL 5799730, at *1 (stating that “not specifying which of the general allegations [are] incorporated into which count . . . does not ordinarily cure the problem [because] the technique still leaves the defendants and the court guessing”).

will, therefore, strike Plaintiff's amended complaint. *Jackson v. Bank of Am., N.A.*, 898 F.3d 1348, 1357-58 (11th Cir. 2018) (“[I]n a case in which a party, plaintiff or defendant, files a shotgun pleading, the district court should strike the pleading and instruct [the party] to replead the case This is so even when the other party does not move to strike the pleading.”) (cleaned up).

Consistent with Eleventh Circuit caselaw,⁷ Plaintiff should be provided with one final opportunity to file an amended complaint that complies with the Federal Rules of Civil Procedure and the Local Rules for the Northern District of Florida.

II. Conclusion

If Plaintiff decides not to pursue this lawsuit after considering the discussion above, then she may file a notice of voluntary dismissal. If Plaintiff wishes to proceed with this lawsuit, then she should file a second

⁷ The Eleventh Circuit has explained that before dismissing a complaint as a shotgun pleading, a district court should give the plaintiff “one chance to replead before dismissing his case with prejudice on non-merits shotgun pleading grounds.” *Barmapov v. Amuial*, 986 F.3d 1321, 1326 (11th Cir. 2021) (cleaned up). And in the “repleading order, the district court should explain how the offending pleading violates the shotgun pleading rule so that the party may properly avoid future shotgun pleadings.” *Vibe Micro, Inc.*, 878 F.3d at 1296.

amended complaint on the **employment discrimination complaint form** approved for use in the Northern District of Florida. When completing the proper complaint form, she should mark the complaint form **“Second Amended Complaint.”** Plaintiff must limit her allegations to claims that relate to the same event or occurrence.

Plaintiff should carefully follow the instructions on the complaint form. She must place each Defendant’s name in the style of the case on the first page of the complaint form, and she must include each Defendant’s address and employment position in the “Defendants” section of the form. In the appropriate section, Plaintiff should clearly describe how each named Defendant was involved in each alleged violation. This description should include the date of each alleged violation. Plaintiff must also include what rights or statutes she contends have been violated, and she must identify each Defendant she claims is liable for each alleged violation. Finally, in the “Relief” section, Plaintiff must identify the form(s) of relief she seeks from this Court. She should only demand relief that she plausibly could recover under the relevant law.

After Plaintiff has completed the second amended complaint using the proper Court-approved form, she should sign it. She should then submit the signed original to the Clerk of Court for filing, and she should keep an identical copy for herself.

For the reasons set forth above, it is **ORDERED** that:

1. Plaintiff's amended complaint (Doc. 5) is **STRICKEN** as an impermissible shotgun pleading and as violative of the page limits set in the Local Rules.

2. The Clerk of Court is directed to send Plaintiff the *pro se* non-prisoner employment discrimination complaint form approved for use in the Northern District of Florida (NDFL *Pro Se* 7).

3. Within **twenty-one days** of the date of this order, Plaintiff must file an amended complaint on the Court-approved complaint form and mark it "Second Amended Complaint." Plaintiff's second amended complaint **must not exceed twenty-five pages** and must comply with the Local Rules and the Federal Rules of Civil Procedure. Alternatively, Plaintiff may file a notice of voluntary dismissal within the same time.

4. Plaintiff's failure to comply with this order will result in a recommendation of dismissal.

DONE AND ORDERED this 17th day of September 2025.

/s/ Zachary C. Bolitho

Zachary C. Bolitho
United States Magistrate Judge